

PANCHAYATI RAJ — PART IX

Origins • Structure • Powers • PESA

Articles 243 – 243O | added by the 73rd Constitutional Amendment, 1992

● Headings & Definitions ● Explanations ● Highlighter = Key Facts 🎯 Exam Tip ✗ Common Mistake
🧠 Memory Trick

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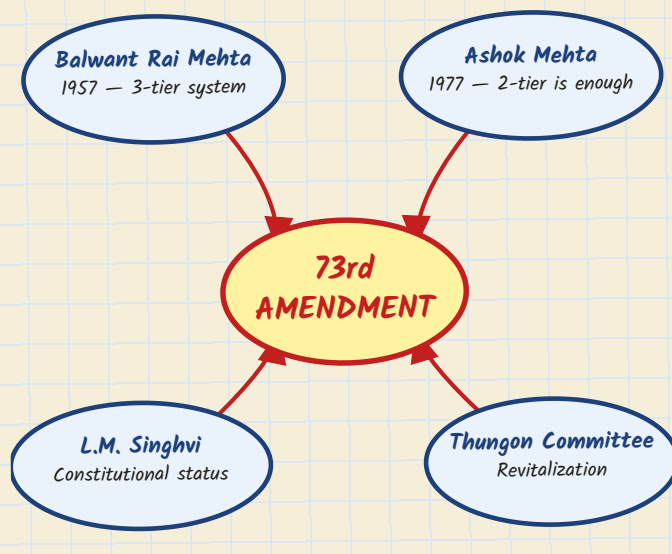
WHERE IT ALL BEGAN — NAGAUR, 1959

On 2 October 1959, Panchayat provisions were first implemented in the Nagaur district of Rajasthan. But at this stage, Panchayats were **not constitutional in nature** — they were not mandatory anywhere.

To make Panchayats **mandatory** across the country, a constitutional amendment was eventually needed — the 73rd Amendment. But before that amendment, several committees were set up to study and recommend how Panchayati Raj should work.



Fig 1: Committees That Shaped Panchayati Raj



1 Balwant Rai Mehta Committee – 1957

This was the **first** committee to recommend that a **three-tier Panchayati Raj system** should be implemented across India.

2 Ashok Mehta Committee – 1977

Formed by Ashok Mehta in 1977. It disagreed with the three-tier idea and said a **two-tier system is enough**.

✗ Common Mistake

Don't get the two mixed up! **Balwant Rai Mehta (1957)** = 3-tier system. **Ashok Mehta (1977)** = said 2-tier is enough. Opposite recommendations, 20 years apart!

3 L.M. Singhvi Committee

Recommended giving Panchayats **constitutional status**, along with a focus on their **revitalization**.



What is "revitalization" here?

It simply means strengthening and reviving the working of Panchayats — not literally reviving anything with a "pill"! It's about making the existing Panchayat system function better.

4 Thungon Committee

Also examined the working and revitalization of Panchayats, in line with the points above.



Memory Trick

Balwant Rai → **B**egins with 3-tier. Ashok Mehta → **A**fter him, only 2-tier. Singhvi → **S**tatus (constitutional). Thungon → **T**ogether with revitalization.



Exam Tip

Remember the sequence: **Nagaur (1959, first implementation, not mandatory)** → committees review the working → **73rd Amendment (1992)** makes it constitutional and mandatory.

THE 73RD CONSTITUTIONAL AMENDMENT, 1992

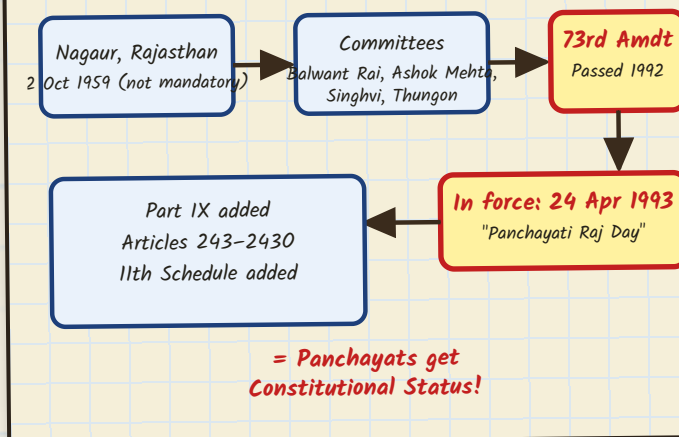
After reviewing all these committees, an amendment was made — the

73rd Constitutional Amendment, passed in 1992. P.V. Narasimha Rao was the Prime Minister at that time.

But the Amendment only came into force on **24 April 1993**. That is why **Panchayati Raj Day** is celebrated on **24 April** every year.



Fig 2: From Nagaur to the 73rd Amendment



What the 73rd Amendment Added

- Part Nine (Part IX) was added to the Constitution
- Articles 243 to 2430 were added under Part IX
- The **11th Schedule** was added to the Constitution
- Panchayats now officially received **constitutional status**



Understand it like this...

Before 1992, Panchayats existed only because individual states chose to set them up — like a rule that could be changed anytime. After the 73rd Amendment, Panchayats

became a constitutional requirement — no state can simply choose to skip them.



Article 243 — The Gram Sabha

Article 243 first talks about the **Gram Sabha** — a body at the **most basic/village level**. It consists of **all persons whose names are on the electoral (voter) list of that village**. In other words, everyone who can vote in that village is automatically a member of the Gram Sabha.



Exam Tip

Gram Sabha is **not elected** — it is simply the entire body of registered voters of the village meeting together. Don't confuse it with the elected Gram Panchayat!

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243B-243J — STRUCTURE, POWERS + FINANCE

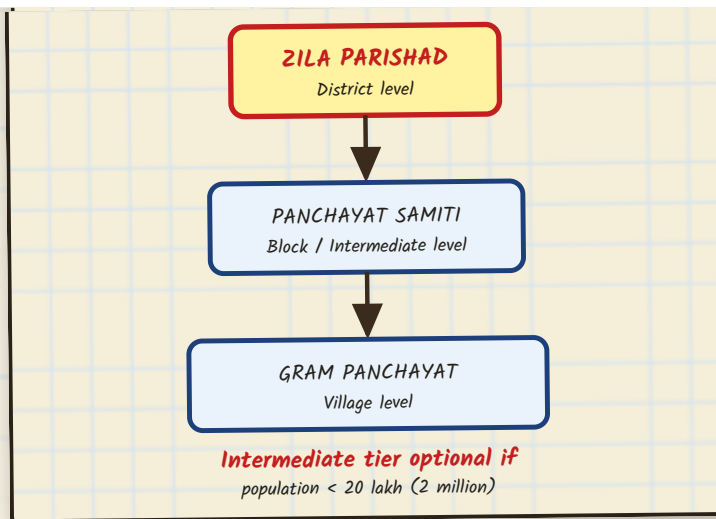
Article 243B — Constitution of Panchayats

This article tells us **how the Panchayat will be constituted** — India follows a **three-tier Panchayati Raj system**.



Fig 3: The Three-Tier Panchayati Raj System





- Gram Panchayat — village level
- Panchayat Samiti — block level (also called the intermediate level)
- Zila Parishad — district level

✗ Common Mistake

Where the population is less than 2 million (20 lakh), it is **not necessary** to create the intermediate (block) level — the state may skip it.

Article 243C — Composition of Panchayat

★ How are the seats filled? **All seats** of the Panchayat are filled through **direct elections**.

- At the **intermediate (block)** and **district** level, the **Chairman** is elected **indirectly**
- At the **village** level, the manner of choosing the Chairman is as determined by the **State Legislature**



🧠 Memory Trick

All Panchayat seats = direct election. Only the Chairman's seat changes rule:
Intermediate + District Chairman = indirect; Village Chairman = "as the State Legislature wishes."

Article 243D — Reservation of Seats

- **Women:** **1/3rd** of the total seats are reserved
- **SC / ST:** reserved in proportion to their population



Exam Tip

Railways (NTPC) and SSC exams frequently ask about local bodies — Panchayat & Municipality reservation rules are a favourite question area. Study these numbers carefully!

Article 243E – Duration of Panchayats

The duration of a Panchayat is **5 years**. If a Panchayat is **prematurely dissolved**, the newly-formed Panchayat serves **only for the remainder of the original term** — not a fresh full 5-year term.

Example: A Panchayat formed in 2020 has its term till 2025. If it gets dissolved early — say in 2022 — the new Panchayat that is formed will serve **only until 2025** (the remainder of the term), not a fresh 5 years.

✗ Common Mistake

This "remainder of term only" rule is **unique to the Panchayat** — it does *not* happen with the Lok Sabha or a Legislative Assembly, where a fresh dissolution leads to a fresh full term.

Article 243F – Disqualification of Membership

- Minimum age required to contest is only **21 years** — not 25 years
- The authority which decides disqualification is determined by the **State Legislature**

Articles 243G, H, I, J

- **243G:** Powers, authority and responsibilities are given to the Panchayat by the **State Legislature**
- **243H:** Power to impose taxes & manage funds — again determined by the **State Legislature**
- **243I:** A **Finance Commission** is constituted — this is the **State's own Finance Commission** (do not confuse with Article 280's Union Finance Commission)
- **243J:** Deals with **Audit** of Panchayat accounts

 **Memory Trick – A to J**

Assembly (Sabha) → Banana (Constitution) → Composition → Dalit (Reservation) →
E means five (Duration) → Fail (Disqualify) → G means bullet (Power/authority) →
House Tax → Income (Finance) → J Investigation (Audit).

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ELECTIONS (243K-243O) + THE PESA ACT

Article 243K – Elections

Elections to the Panchayat are conducted by the **State Election Commission**, which is formed specifically for this purpose.

Article 243L – Application to Union Territories

This article extends the provisions of Part IX to **Union Territories (UTs)**.

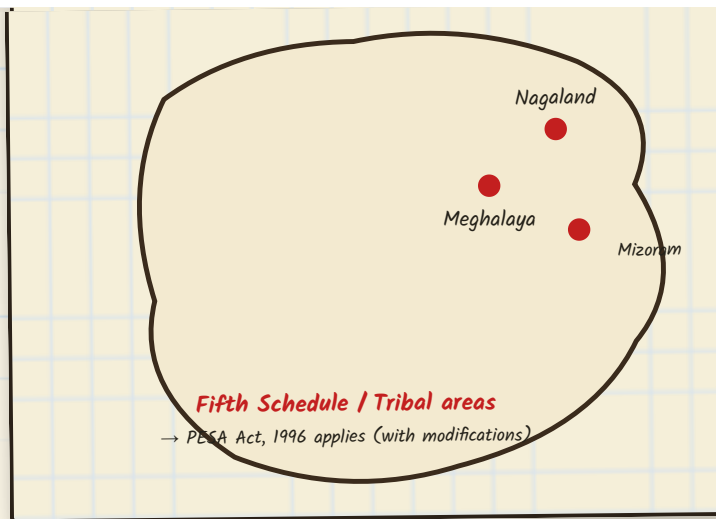
Article 243M – Part Not to Apply to Certain Areas

The provisions of Part IX **do not apply** in certain areas — keep in mind **Nagaland**, **Meghalaya** and **Mizoram**.

Article 243O – Bar to Interference by Courts

This article means that **courts cannot interfere** in matters relating to Panchayat elections.

 Fig 4: Where Part IX Does Not Directly Apply



🎯 Exam Tip

Quick recall for the last few articles: **K**=Elections(State Election Commission), **L**=UTs, **M**=Not applicable in Nagaland/Meghalaya/Mizoram, **O**=courts can't interfere in elections.

Constitution Parts – Quick Reference

Part	Subject
Part 5	Union
Part 6	States
Part 7	Repealed
Part 8	Union Territories
Part 9	Panchayats
Part 10	Scheduled & Tribal Areas
Part 11	Centre-State Relations



The PESA Act, 1996

The Panchayat (Extension to Scheduled Areas) Act was passed in 1996. Under this Act, the provisions of Part IX **cannot be directly applied** in Scheduled Areas — they apply only with certain modifications.



Memory Trick

PESA = Panchayat's Extension to Scheduled Areas → think "Part IX, but customised for tribal areas."

- The Gram Panchayat was given a lot of power in Scheduled (Fifth Schedule) Areas
- All Chairman-level seats are reserved for tribals
- At other levels, **50% of seats** are reserved for tribals
- Purpose: to promote self-governance in tribal areas

Memory Trick

PESA reservation split: **Chairman = 100% tribal, other seats = 50% tribal** — remember "Top post fully tribal, rest half tribal."

Common Mistake

PESA does *not* apply Part IX word-for-word to Scheduled Areas — it applies it **with modifications**, giving extra powers like near-total tribal reservation.

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★ EXAM-READY SUMMARY Committees Recap

Committee	Year	Key Recommendation
Balwant Rai Mehta	1957	Three-tier Panchayati Raj system
Ashok Mehta	1977	Two-tier system is enough
L.M. Singhvi	—	Constitutional status + revitalization
Thungon	—	Revitalization of Panchayats

Key Facts at a Glance



- First implementation: Nagaur, Rajasthan — 2 October 1959 (not mandatory then)

- **Constitutional Amendment:** 73rd Amendment, 1992 (PM: P.V. Narasimha Rao)
- **Came into force:** 24 April 1993 → celebrated as Panchayati Raj Day
- **Added to Constitution:** Part IX, Articles 243–243O, 11th Schedule
- **Structure:** Gram Panchayat (village) → Panchayat Samiti (block) → Zila Parishad (district)
- **Reservation:** Women 1/3; SC/ST in proportion to population
- **Duration:** 5 years; premature dissolution → only remainder of term for the new body
- **Minimum age to contest:** 21 years
- **Elections conducted by:** State Election Commission (243K)
- **Not applicable in:** Nagaland, Meghalaya, Mizoram (243M)
- **PESA Act, 1996:** applies Part IX to Scheduled Areas with modifications; Chairman seats 100% tribal, other seats 50% tribal



Fig 5: Articles 243A–243O – The Mnemonic Chain

A-Sabha	B-Constitution	C-Composition	
D-Reservation	E-Syr Duration		F-Disqualify
G-Powers	H-Taxes	I-Finance	J-Audit
K-Elections	L-UTs	M-Exempt areas	
O-No Court Interference in Elections			



"Nagaur, 1959 → committees debate the structure → 73rd Amendment, 1992 → in force 24 April 1993" – the full journey of Panchayati Raj in one line!



Exam Tip

NTPC / SSC / Banking exams love asking local-body questions in depth — Panchayat & Municipality provisions, committee years, and reservation percentages are must-revise topics.



Common Mistake

Don't confuse the **State Finance Commission (Article 243I)** with the **Union Finance Commission (Article 280)** — they are two completely different bodies.



Memory Trick

Whole chapter in one line: "Nagaur begins it, committees debate it, 73rd Amendment constitutionalises it, PESA customises it for tribal areas."

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